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The Minister for Legal Protection
P.O. Box 20301
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Date

July 4, 2022

Our reference

z2022-03252

Your letter of

May 23, 2022

Contact person

Your reference

4004881

Subject

Advice on the draft amendment to the Child, Surrogacy and Parentage Act

Dear Mr. Weerwind,

In your letter dated May 23, 2022, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for paragraph x Register of Origins and Parentage after Surrogacy of the legislative proposal Child, Surrogacy and Parentage Act (hereinafter: the draft).

According to the explanation, data of children born before the entry into force of the legislative proposal can also be included in the register. This retroactive effect is not substantiated in the explanation. Furthermore, the necessity of including (special) personal data of the partner of the surrogate mother in the register in relation to the stated purposes and for reasons of compelling general interest is not demonstrated in the explanation.

The AP has objections to these points regarding the draft and advises against continuing the procedure unless the objections are resolved.

Scope of the draft

In a letter dated April 24, 2020, the AP was already consulted regarding the draft for the Child, Surrogacy and Parentage Act.¹ That legislative proposal regulates the manner of the establishment of parenthood after surrogacy. It also provides that information about biological or genetic parentage will be included in a central register, so that the child can ascertain who his or her biological parents are.

¹ Draft amendment to Book 1 and Book 10 of the Civil Code and some other laws in connection with the introduction of, in particular, a regulation for surrogacy and a strengthening of the child's right to parentage information (Child, Surrogacy and Parentage Act). The AP advised on this on July 16, 2020 (z2020-07434).

Date

July 4, 2022

Our reference

z2022-03252

2/4

The current draft contains the main outlines of the register. The purpose of the register is to enable the child to gain access to information about his or her biological or genetic parentage and history of

origin.² Personal data may be included in the register, including special personal data of the child, the intended parents, the surrogate mother and her partner, and of the gamete donors used.³ Further rules will be established by or pursuant to a general administrative measure.⁴ The court rulings relating to surrogacy and the surrogacy agreement will also be included in the register.⁵ The data will be retained for at least one hundred years, calculated from the day the child is born.⁶

Advice

De facto retroactive effect

According to the explanation, data of children born before the entry into force of the legislative proposal can also be included in the register.⁷ Although in technical terms 'immediate effect' arises from application to facts that can no longer be changed, it constitutes a comparable infringement on the legal certainty of surrogate mothers.⁸ At the time of the decision to become a surrogate mother, they could not know that registration of this would take place in the future. The draft or explanation does not clarify in which cases and/or under what circumstances this applies. It is obviously of great importance whether this also concerns mandatory registration for these cases. The explanation also lacks a substantiation of this choice and the considerations regarding the principle of legal certainty that have been made in this context.

The AP advises against including data of children born before the entry into force of the law in the register, unless the necessity of this is adequately substantiated in the explanation and the legislative proposal provides appropriate safeguards, such as, for example, the consent of the parties involved.

Processing personal data of the partner of the surrogate mother

According to the draft, the purpose of the register is to enable the child to gain access to information about his or her biological or genetic parentage and history of origin.

The draft stipulates that (special) personal data of (among others) the partner of the surrogate mother may be included in the register. The necessity of processing personal data of the partner of the surrogate mother for the stated purposes is not evident from the explanation. It is also not clear from

2 The proposed Article 1:223, third paragraph, Civil Code.

3 The proposed Article 1:223, fourth paragraph, Civil Code.

4 The proposed Article 1:225, second dash, Civil Code.

5 The proposed Article 1:223, fifth paragraph, Civil Code.

6 The proposed Article 1:223, sixth paragraph, Civil Code.

7 Article-by-article explanation of Article 1:223 Civil Code.

8 Ar 5.61 and 5.62 of the Guidelines for Legislation.

Date

July 4, 2022

Our reference

z2022-03252

3/4

the explanation that the processing of special personal data of the partner of the surrogate mother is necessary for reasons of substantial public interest.⁹

The AP advises against including any (special) personal data of the partner of the surrogate mother in the register, unless the necessity thereof in relation to the stated purposes and for reasons of substantial public interest is demonstrated in the explanation.

Statistical purposes

According to the explanation, the register will also provide more insight into the frequency of surrogacy in the Netherlands or at the request of Dutch citizens outside the Netherlands. Articles 24 and 44 of the Implementation Act of the GDPR (UAVG) provide a basis for the processing of personal data in the register for statistical purposes, which is why this is not included as a separate purpose in the draft.¹⁰

Article 24 of the UAVG concerns exceptions to the prohibition on processing special personal data for

(among other things) statistical purposes. Article 44 of the UAVG addresses exceptions to certain rights of data subjects in the case of (among other things) statistics. These articles do not pertain to the requirement of purpose specification (Article 5, first paragraph, under b, of the GDPR) and the basis for data processing (Article 6, first paragraph, of the GDPR), as stated in the explanation.

However, Article 5, first paragraph, under b, of the GDPR stipulates that further processing for statistical purposes is not considered incompatible with the original purposes, provided that appropriate safeguards for the rights and freedoms of the data subjects have been implemented.¹¹ But now that it is already clear in advance that personal data will be processed for statistical purposes, it is preferable from the perspective of transparency and legal certainty to legally anchor these data processing activities, with the explanation accounting for the considerations made in the context of the necessity requirement.

Moreover, the exceptions to the processing prohibition as referred to in Article 24 of the UAVG only apply if the cumulative conditions mentioned therein are met.¹² The explanation does not indicate that these conditions have been met. In particular, it has not been demonstrated that obtaining explicit consent proves impossible or requires a disproportionate effort.

9 Article 9, second paragraph, under g, of the GDPR.

10 Article-by-article explanation of Article 1:223 and general explanation, paragraph 6.1.

11 In accordance with Article 89, first paragraph, of the GDPR.

12 These conditions are:

- a. the processing is necessary for scientific or historical research or statistical purposes in accordance with Article 89, first paragraph, of the regulation;
- b. the research referred to in part a serves a public interest;
- c. obtaining explicit consent proves impossible or requires a disproportionate effort; and
- d. appropriate safeguards are in place to ensure that the personal privacy of the data subject is not disproportionately harmed.

Date

July 4, 2022

Our reference

z2022-03252

4/4

The AP advises to legally specify the statistical purposes and the data processing in this context and to substantiate the necessity of these data processing activities in the explanation. The AP also advises to substantiate in the explanation that an exception to the processing prohibition of special personal data is met, as mentioned in Article 9, second paragraph, under j, of the GDPR.

Retention period

According to the principle of data minimization, personal data may not be retained longer than necessary for the purposes for which the personal data are processed.¹³ A general norm such as this implies that there must be specification for specific data processing activities.

The draft proposes a retention period of at least one hundred years. The principle of data minimization, on the other hand, requires a maximum retention period.

The AP advises to change the minimum retention period to a maximum retention period.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (revised) draft is made public. The AP would like to be informed of the expected time of disclosure as soon as this is known.

Yours sincerely,

Dutch Data Protection Authority,

ir. M.J. Verdier

Vice Chair

13 Article 5, first paragraph, under e, of the General Data Protection Regulation.